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IN THE COURT OF COMMON PLEAS
KNOX COUNTY, OHIO

FILED
KNOX COUNTY
COURT OF COMMON PLEAS
2024 JUL 19 AM 11:50
CHRISTY HILLIGAN STATION
CLERK OF COURTS

STATE OF OHIO, EX REL.

PLAINTIFF,

-vs-

Case No. 20IN06-0149

THE LANDINGS PROPERTY
ASSOCIATION, INC., ET AL.

Judge Richard D. Wetzel

DEFENDANTS.

**ORDER TO PLAINTIFF TO PERFECT SERVICE UPON
CORPORATION PURSUANT TO R.C. 1702.06**

This matter is before the Court upon its own motion. A review of the court docket in the case shows that the Plaintiff has filed a Third Amended Complaint in the case on or about April 3, 2023. The Plaintiff then commenced service upon the defendant The Landings Property Owners Association, Inc. pursuant to an Affidavit and instructions for service under R.C. 1701.07. The defendant corporation is a non-profit corporation, governed by R.C. 1702.01 et seq. The corresponding statute for service upon a non-profit corporation when its agent cannot be found is R.C. 1702.06 which provides in pertinent part:

(H) Any process, notice, or demand required or permitted by statute to be served upon a corporation may be served upon the corporation by delivering a copy of it to its agent, if a natural person, or by delivering a copy of it at the address of its agent in this state, as such address appears upon the record in the office of the secretary of state. If (1) the agent cannot be found, or (2) the agent no longer has that address, or (3) the corporation has failed to maintain an agent as required by this section, and if in any such case the party desiring that such process, notice, or demand be served, or the agent or representative of the party, shall have filed with the secretary of state an affidavit stating that one of the foregoing conditions exists and stating the most recent address of the corporation that the party after diligent search has been able to ascertain, then service of process, notice, or

demand upon the secretary of state, as the agent of the corporation, may be initiated by delivering to the secretary of state or at the secretary of state's office triplicate copies of such process, notice, or demand and by paying to the secretary of state a fee of five dollars. The secretary of state shall forthwith give notice of such delivery to the corporation at its principal office as shown upon the record in the secretary of state's office and also to the corporation at any different address set forth in the above mentioned affidavit, and shall forward to the corporation at each of those addresses, by certified mail, with request for return receipt, a copy of such process, notice, or demand; and thereupon service upon the corporation shall be deemed to have been made.

To assure that this court has proper jurisdiction over the defendant corporation, the Court hereby orders the Plaintiff to complete service upon the defendant corporation in accordance with the statute within 30 days of the date of this Order.

IT IS SO ORDERED.


Richard D. Weizel, JUDGE

7-19-24

cc:

All parties and/or counsel of record